



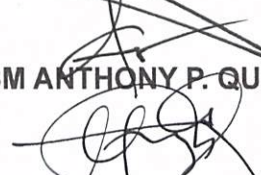
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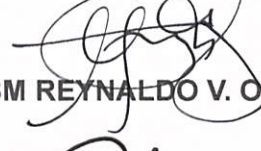
ENACTED: This 1st day of December 2025 at Agoo, La Union.

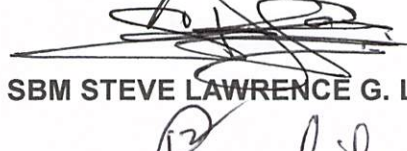

SBM MARK ANTHONY T. REFUGIA


SBM PRISCILLA B. KOMIYA


SBM ANTHONY P. QUERO


SBM ROBERT A. FONTANILLA

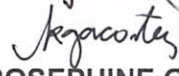

SBM REYNALDO V. OLLER


SBM STEVE LAWRENCE G. LOMBOY


SBM JEAN C. BOADO

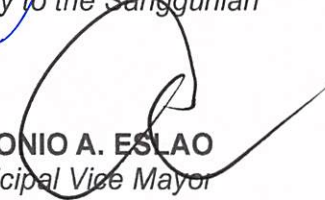

SBM ROGELIO R. GARABILES


SBM ERWIN B. CASTRO
Liga ng mga Barangay President


SBM ROSEPHINE GWYNETH A. CORTEZ
SK Federation President

I HEREBY CERTIFY THAT THIS IS TRUE AND ACCURATE COPY OF THE ORDINANCE
DULY ENACTED BY THE SANGGUNIAN ON DECEMBER 01, 2025.


FRANCISCO A. VERGARA
Secretary to the Sanggunian


ANTONIO A. ESLAO
*Municipal Vice Mayor
Presiding Officer*


FRANK O. SIBUMA
Municipal Mayor
Date Signed: DEC 12 2025



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places of this Ordinance to establish smoking/vaping and non-smoking/non-vaping areas under section 5 of the same;

- c) Sale of tobacco products or vapor products to or by a minor;
- d) Using minors to purchase cigarettes or any tobacco products, vapor products, vaporized products, and Vaporized Nicotine or Non-nicotine Products by any adult person for personal consumption.
- e) Sale of tobacco products or vapor products and Vaporized Nicotine or Non-Nicotine Products within one hundred (100) meters from any point of the perimeter of a school, public playground owned by the government or other facility frequented particularly by minors who are intended to be the principal users or patrons of such facilities;
- f) Non-compliance with the required signage in point-of-sale establishments;
- g) Distribution of samples of tobacco products or vapor products to minors.

Section 10. Implementors. Barangay Officials and PNP are the primary implementors of this ordinance. APSOO, BSI shall have the authority or deputized to issue violation citation tickets, gather necessary evidence and file appropriate compliance against violators.

Section 11. PENALTIES. Any person violating this Ordinance shall be punished to pay a fine as follows:

First Offense	- Php. 1,000.00
Second Offense	- Php. 2,000.00
Third and Succeeding Offense	- Php. 2,500.00

Provide, that the business permits and licenses, in the case of a business entity or establishments, shall be revoked or cancelled.

Section 12. SEPARABILITY CLAUSE. If for any reason any, provision of this ordinance shall be held unconstitutional or not valid by any court of competent jurisdiction, such judgement shall not affect or impair the other provisions or part thereof which shall continue to be in force and in effect.

Section 13. REPEALING AND AMENDATORY CLAUSE. All municipal ordinance, resolutions, rule, and regulations or any part thereof which are in conflict with or inconsistent with the provisions of this ordinance are hereby repealed and/or modified accordingly.

Section 14. EFFECTIVITY. This Ordinance shall take effect upon compliance of the mandatory posting and publication requirement prescribed under Section 59 of the Local Government Code of 1991.

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- c) "GOVERNMENT WARNING: Tobacco Smoke Can Harm Your Children" (BABALA: Ang Usok ay Mapanganib)
- d) "GOVERNMENT WARNING: Smoking Kills" (BABALA: Nakakamatay ang Paninigarilyo)

Under no circumstances shall any mark, device, word, or image associate with any tobacco company or product be include in any of these signs and materials. Non-smoking/non-vaping areas shall likewise have at least one (1) legible and visible sign posted saying "NON-SMOKING/NON-VAPING AREA" or "NO SMOKING".

Section 8. MINIMUM AGE SALES. Under this Ordinance, it shall be unlawful:

- a) For any relief of tobacco product, vapor products, vaporized products, and Vaporized Nicotine or Non-Nicotine Products to sell or distribute to sell or distribute tobacco products, vapor products, vaporized products, and Vaporized Nicotine or Non-Nicotine Products to a minor.
- b) For any adult person to use minors to purchase cigarettes or any tobacco products, vapor products, vaporized products, and Vaporized Nicotine or Non-Nicotine Products for personal consumption.
- c) To purchase cigarette or any tobacco products, vapor products, vaporized products, and Vaporized Nicotine or Non-Nicotine Products from a minor.
- d) For minors to sell cigarettes, any tobacco products and vapor products, Vaporized Products, and Vaporized Nicotine or Non-Nicotine Products.
- e) For minors to purchase cigarettes, any tobacco products and vapor products, Vaporized Products, and Vaporized Nicotine or Non-Nicotine Products.
- f) To sell distribute cigarettes, any tobacco products and vapor products, vaporized products, and Vaporized Nicotine or Non -Nicotine Products within 100 meters from any point of perimeter of a school, public playground owned by the government or other facility frequented by minors who are or are intended to be principal users or patrons of such facilities.

It shall not be a defense for the person selling or distributing that he or she did not know or was not aware of the real age of the purchases. Neither shall it be a defense that he or she did not know nor had any reason to believe that the product was for the consumption of a person below eighteen (18) years of age.

Section 9. PUNISHABLE ACTS. The following acts are punishable under the Ordinance.

- a) Smoking/vaping in public places and private establishments except in designated smoking/vaping areas;
- b) Non-compliance by the owners, proprietors, possessors, managers or administrators of enclosed places open to the general public, public and private workplaces and other

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- k) Computer and internet shops;

Section 5. DESIGNATION OF SMOKING/VAPING AND NON-SMOKING/NON-VAPING AREAS. In all enclosed places that are open to the general public, public and private workplaces and other places, where smoking/vaping may expose a person other than smoker to tobacco smoke or the person vaping, the owners, proprietors, operators, possessors, managers or administrators of such places shall establish smoking/vaping and non-smoking/non-vaping areas.

Such areas may include a designated smoking/ vaping area within the building, which may be in an open space, or in a separate area with proper ventilation, but shall not be located within the same room that has been designated as non-smoking/non-vaping area.

Section 6. STANDARDS FOR DESIGNATED SMOKING/VAPING AREA. The Owners, proprietors, operators, passengers, managers, or administrators of establishments shall determine the size and specifications of the smoking/vaping or non-smoking/non-vaping area: Provided, that the following standard shall be observed:

- The designated smoking/vaping area other than in an open space shall be completely enclosed or physically separated from the rest of the premises and equipped with adequate ventilation in conformity with the provision of Presidential Decree 1096, otherwise known as the "National Building Code", and the Philippine Society of Mechanical Engineers Code;
- Separation of the designated smoking/vaping area other than in an open space shall be affected through the following means: The designated smoking/vaping area must be fully separated from smoke-free area by continuous floor-to-ceiling or floor-to-floor solid partition which are interrupted only by doors equipped with closers, and which must be constantly closed except when a person is entering or exiting the area.

Section 7. SIGNAGE FOR THE DESIGNATED SMOKING/VAPING AND NON-SMOKING/NON-VAPING AREAS. All designated smoking/vaping areas shall have at least one (1) legible and visible sign posted saying "SMOKING/VAPING AREA", in English or Filipino, for the information and guidance of all concerned. The sign shall be placed conspicuously at the entrance to the designated smoking area and shall be in accordance with the specifications set forth, as follows:

Overall size of sign 297 x 210 mm Font and size for "NO SMOKING/VAPING AREA" or "SMOKING/VAPING AREA" Arial Black, 122 pt. Font and size for "GOVERNMENT WARNING" Arial Black, 48 pt. Font and size for "Tobacco Regulation Act" Arial Black, 32pt. In addition, the sign or notice shall include a warning in English or Filipino about the effects of both direct and secondary exposure to tobacco smoke. Said warning may be any of the following:

- "GOVERNMENT WARNING: Cigarette Smoking is Dangerous to your Health" (BABALA: Ang Paninigarilyo ay Mapanganib sa iyong Kalusugan.)
- "GOVERNMENT WARNING: Cigarette are Addictive" (BABALA; "Ang Sigarilyo ay Nakaka-adik)



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- h) **Vapor Product System**, also referred to as electronic nicotine or non-nicotine delivery system, shall refer to the specific combination consisting of the Vapor Product refill and Vapor Product Device which, based on the information made available to the consumer by the provider, are intended to be used together.
- i) **Electronic Nicotine Delivery System (ENDS) which shall include Electronic Non-Nicotine Delivery Systems (ENNDS)** for purpose of this regulation means any device such as electronic cigarettes (e-cigarettes), electronic shisha (e-shisha), vapes, vape pen, Heat-Non-Burn products, and other similar devices, whether or not it is used to deliver nicotine and/or other components to the user, which may be through the act of vaping or that which resembles smoking, and may have the outward appearance of smoking products. And;
- j) **Vaporized Nicotine or Non-Nicotine Products** shall refer to both Heated Tobacco Products and Vapor Products, as defined herein, which are novel consumer goods that generate a nicotine-containing or non-nicotine containing aerosol without combustion.

Section 3. COVERAGE – This ordinance shall apply to all persons whether resident or not, and all places found within the territorial jurisdiction of Municipality of Agoo, La Union.

Section 4. SMOKING/VAPING BAN IN PUBLIC PLACES AND PRIVATE ESTABLISHMENTS.

Smoking/vaping shall be absolutely prohibited in the following public places and private establishments within territorial jurisdiction of Municipality of Agoo, La Union.

- a) Random checking of bags for students before entering school premises;
- b) All schools including playschools, preparatory schools, elementary schools, high schools, colleges and universities;
- c) Centers of youth activity such as recreational facilities for persons under eighteen (18) years old. Such recreational facilities for persons under 18 years old shall include, but are not limited to playgrounds;
- d) Locations in which fire hazards are present, including gas stations and storage areas for flammable liquids, gas explosives or combustible materials;
- e) Public transportations/conveyance and public facilities such as PUJs and Tricycle, stations and terminals, restaurants and conference halls, except in separate smoking areas;
- f) Restaurants, carinderias or other food preparations areas;
- g) Private Medical/Dental Clinics;
- h) Drugstores;
- i) Banks and their satellite offices;
- j) Pawnshops, credit facilities and similar lending and financial institutions;

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Secretary to the Sanggunian

ANTONIO A. ESLAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor



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PANLALAWIGAN

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MUNICIPAL ORDINANCE NO. 20-2025

BY: X-1115
DATE: 12-17-25 TIME: 9:54

Authored by: SBM Mark Anthony T. Refugia

Sponsored by: SBM Priscilla B. Komiya

AN ORDINANCE REGULATING SMOKING/VAPING IN PUBLIC PLACES AND BUSINESS ESTABLISHMENTS AND DESIGNATING A SMOKING/VAPING AREA IN PUBLIC PLACES AND PRIVATE ESTABLISHMENTS AND IMPOSING PENALTIES FOR VIOLATION THEREOF

BE IT ORDAINED, by the Sangguniang Bayan of Agoo, La Union in regular session assembled that:

Section 1. TITLE. This Ordinance shall be known as "AN ORDINANCE REGULATING SMOKING/VAPING IN PUBLIC PLACES AND BUSINESS ESTABLISHMENTS AND DESIGNATING A SMOKING/VAPING AREA IN PUBLIC PLACES AND PRIVATE ESTABLISHMENTS AND IMPOSING PENALTIES FOR VIOLATION THEREOF".

Section 2. DEFINITION OF TERMS. As used in this Ordinance:

- Public Places** includes all government offices and edifice within the Municipality of Agoo, La Union.
- Designated Smoking/Vaping Area** refers to an area of a building or conveyance where smoking and/or vaping may be allowed which may be in an open space or separate area with proper ventilation. It shall not be located within ten (10) meters of entrances, exits or any place where people usually congregate, and it shall not have an area larger than ten (10) sq. m. No food or drinks shall be served in the designated smoking/vaping area.
- Enclosed** means being covered by a roof or other structure serving the purpose of a roof and having one or more walls or sides.
- Smoking** refers to the act of carrying a lighted cigarette or other tobacco products, whether or not it is being inhaled or smoked.
- Vaping** refers to the act of inhaling and exhaling aerosols or vapor produced or by any Electronic Nicotine Delivery System (ENDS) / Electronic Non-Nicotine Delivery system (ENNDS) or other electronic device whether or not it is used to deliver nicotine to the user, and mimics the act of smoking.
- Vapor Products**, also referred to as Vapor Products Refills, shall refer to the liquid, solid, or gel, or any combination thereof, which may or may not contain nicotine, that is transformed into an aerosol without combustion by a Vapor Product Device;
- Vapor Product Device** shall refer to a device or a combination of devices used to heat a vapor product, to produce an aerosol, mist, or vapor that users inhale. These may include combinations of a liquid solution or gel that are heated and transformed into an aerosol without combustion through the employment of a mechanical or electronic heating element, battery, or circuit, and includes, but is not limited to, a cartridge, a tank, or a device without a cartridge or tank;

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OFFICE OF THE SANGGUNIANG BAYAN

CERTIFICATION

To Whom It May Concern:

This is to certify that a Public Hearing was conducted last November 13, 2025 at 10:30 in the morning at the Mayor's Conference Hall, Sta. Barbara, Agoo, La Union on the passage of **MUNICIPAL ORDINANCE NO. 20-2025 ENTITLED "AN ORDINANCE REGULATING SMOKING/VAPING IN PUBLIC PLACES AND BUSINESS ESTABLISHMENTS AND DESIGNATING A SMOKING/VAPING AREA IN PUBLIC PLACES AND PRIVATE ESTABLISHMENTS AND IMPOSING PENALTIES FOR VIOLATION THEREOF."**

Issued for purpose of legislative review by the Sangguniang Panlalawigan of La Union.

12th day of December 2025, Agoo, La Union.


FRANCISCO A. VERGARA
Secretary to the Sanggunian



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO

OFFICE OF THE SANGGUNIANG BAYAN

December 12, 2025

HON. ERIC O. SIBUMA

*Vice Governor/ Presiding Officer
Sangguniang Panlalawigan- La Union
Capitol, San Fernando City, La Union*

**RECEIVED
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PANLALAWIGAN**

BY: MMS
DATE: 12-17-25 TIME: 9:54

Sir:

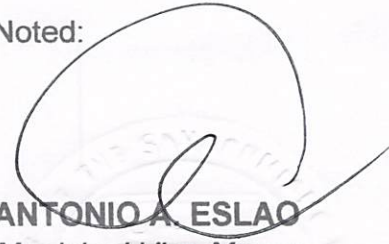
Transmitting herewith is Municipal Ordinance No. 20-2025, An Ordinance Regulating Smoking/Vaping in Public Places and Business Establishments and Designating a Smoking/Vaping Area in Public Places and Private Establishments and Imposing Penalties for Violation Thereof.

Your favorable action hereon is highly appreciated. Thank you very much!

Respectfully yours,


FRANCISCO A. VERGARA
Secretary to the Sanggunian

Noted:


ANTONIO A. ESLAO
Municipal Vice Mayor